

		Defendant’s evidence establishes it acted diligently and in good faith. The complaint alleges Plaintiff tripped and fell in a parking lot owned by Defendant due to the grading of the slope at issue that exceeded maximum incline grades permitted under the California Building Code. (See Complaint, p. 6:4-14.) Defendant states that less than two months before the alleged incident, it contracted South Coast Paving and ADA Inspection to partially repave the parking lot. (Vermani Decl., ¶¶ 4, 9, Ex. B.) Defendant confirmed the grounds for filing a cross-complaint after it completed its investigation into the factual circumstances surrounding the complaint, including the contractual obligations between Defendant and South Coast Paving and ADA Inspection. (Vermani Decl., ¶¶ 7-8.) Defendant filed the instant motion on 3/9/26, less than three months after it filed its answer. Plaintiff has not opposed the motion and, therefore, has not established Defendant acted in bad faith. The court finds granting leave will be in the interest of justice and serve the purpose of cross-complaints: “to have a complete determination of a controversy among the parties in one action, thus avoiding circuity of action and duplication of time and effort.” (<i>City of Hanford v. Superior Court</i> (1989) 208 Cal.App.3d 580, 587.) The motion is granted. Defendant is ordered to file its cross-complaint within five (5) days.
10.	GUEVARA VS. ALHALLAQ 2025-01492960	MOTION FOR LEAVE TO FILE AMENDED COMPLAINT Plaintiff Jens Kevin Guevara’s motion for leave to file a second amended complaint is CONTINUED to 9/15/26 at 9:00 a.m., in Dept. 32. Plaintiff has not submitted a proof of service showing the moving papers were served on Defendants. (See Code Civ. Proc. § 1005, subd. (b); Cal. Rules of Court, rule 3.1300, subd. (c).) As no response or opposition was filed the Court cannot deem this defect waived. Plaintiff is ORDERED to file a Proof of Service showing the moving papers were served on Defendants at least 5 court days before the CONTINUED hearing.
11.	ERBRICK VS. SPLITZ BY AGGIE 2025-01507047	MOTION TO SET ASIDE/VACATE DEFAULT AND JUDGMENT Defendants Gregg Hale and Splitz by Aggie’s Motion to Set Aside Default is DENIED. <u>Code of Civil Procedure § 473</u>

		While Defendants do not cite a specific statute, Defendants appears to move to set aside the default entered against them pursuant to Code of Civil Procedure section 473, subdivision (b), which permits the court to “relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.” While “[a] default and default judgment may be set aside pursuant to the provisions of Code of Civil Procedure, section 473, subdivision (b), [] the motion must be made within six months after entry of the default.” (<i>Manson, Iver & York v. Black</i> (2009) 176 Cal.App.4th 36, 42.) The Court entered default against Defendants on 12/20/25 (ROA 21, 22.) Defendants’ motion was filed on 3/10/26 and is therefore timely. Defendants contend they “did not know I had to send a response letter to the court stating that I will be there January 30, 2026 after I was served the paperwork to set aside the defaults to all the defendants.” (ROA 30.) “Pro. per. litigants are held to the same standards as attorneys.” (<i>Kobayashi v. Superior Court</i> (2009) 175 Cal.App.4th 536, 543 [citations omitted].) Mistake is not a ground for relief when it is the result of general ignorance of the law. (<i>Kramer v. Traditional Escrow, Inc.</i> (2020) 56 Cal.App.5th 13, 32 [citation omitted].) Defendants’ contention they were not aware they were required to respond is not grounds for relief under section 473. Moreover, section 473, subdivision (b) provides, “[a]pplication for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted . . .” Defendants have not included a copy of the answer to the motion.
12.	GOVEA VS. CITY OF FULLERTON 2023-01360733	DEMURRER TO AMENDED CROSS-COMPLAINT Cross-defendant United Specialty Insurance Company’s (USIC) Demurrer to Plaintiff’s Second Amended Complaint is CONTINUED to 9/15/26, at 9:00 a.m. in Department C32 as USIC’s counsel did not sufficiently meet and confer prior to filing the demurrer. Before filing a demurrer, the moving party shall meet and confer with the opposing party in person, by telephone, or by video conference at least 5 days before a responsive pleading is due to see if a resolution can be reached on the objections to the pleading. (Code Civ. Pro., § 430.41, subs. (a), (a)(2).)